

STATE OF NORTH CAROLINA

New Hanover COUNTY IN THE GENERAL COURT OF JUSTICE

File No.: 2004CR000000118844-A [] District [] Superior Court Division

APPLICATION TO EXPUNGE DNA RECORD AND SAMPLE UNDER G.S. 15A-146(b1)

Applicant: Maria-Alejandra O'Shaughnessy-Whitfield

Mailing address: 1188 Upper Yadkin River Crossing Road, Apartment 14B, Winston-Salem, NC 27101-2214

Date of birth: 1968-12-31

Telephone: (336) 555-0199 ext. 4417

Email: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

The Applicant asks for an order under G.S. 15A-146(b1) expunging the DNA record and DNA sample associated with the dismissed charge identified below.

Charge or offense description:

Date the charge was dismissed:

DNA sample collection date, if known (optional):

Agency that collected or holds the DNA record/sample:

The Applicant requests the relief available under G.S. 15A-146(b1). The Applicant does not ask this document to decide any relief under subsection (a) or (a1). AOC-CR-287 is not this application and is not attached as a filing form.

Applicant signature: Signature date:

NOTICE OF HEARING (COURT COMPLETES)

Hearing date and time:

CERTIFICATE OF SERVICE ON THE DISTRICT ATTORNEY

Complete this certificate only after service. The route requires service on the district attorney not less than 20 days before the hearing.

District Attorney office/recipient:

Service address:

Method of service accepted for this matter:

Date served:

I certify that I served this application on the district attorney identified above.

Applicant signature: Signature date:

INSTRUCTIONS FOR THE SEPARATE G.S. 15A-146(b1) DNA-EXPUNCTION APPLICATION

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

ROUTE BOUNDARY

This packet is only for the separate DNA-expunction application under G.S. 15A-146(b1). AOC-CR-287 and its official instructions are for dismissal petitions under subsection (a) or (a1). They are exact sources bound in the receipt, but they are not substituted for this application and are not attached as filing pages.

BEFORE YOU FILE OR SERVE

1. Ask the clerk in the county of the criminal case to confirm the correct court division, filing destination, filing method, whether a filing fee applies, and whether the conditional AOC-CV-226 in this packet is accepted for any fee the clerk identifies. The current route record does not settle those items.
2. Copy the charge or offense description and dismissal date from the court record. Do not rely on memory.
3. Add the agency that collected or holds the DNA record/sample. Add the collection date only if known; the application marks it optional.
4. Sign and date the application yourself. The platform never signs or dates it for you.
5. Serve the application on the district attorney. Ask the clerk or district attorney's office which service method and address are accepted; the route record names the recipient and timing but does not settle a delivery method or address.
6. Make sure service occurs not less than 20 days before the hearing. Complete the certificate only after service, then retain proof of service and follow the clerk's directions for submitting it.

ITEMS YOU MUST SUPPLY

Court division; charge or offense description; date the charge was dismissed; agency that collected or holds the DNA record/sample; District Attorney office/recipient; service address; method of service accepted for this matter; and date served. If the conditional fee-waiver form is used, complete every applicable financial field and election on that sworn form.

CONDITIONAL FEE-WAIVER COMPANION

AOC-CV-226 follows a separator page. Do not file it merely because it is present. The route record does not state a filing fee or fee-waiver treatment. Use the form only if the clerk confirms that a fee applies, that a waiver may be requested, and that AOC-CV-226 is the form the court accepts. Complete it fully and truthfully, and sign or swear it only before the official the form requires.

STOP AND GET HELP

Stop if the charge was not dismissed, if you are trying to expunge the criminal court case rather than a DNA record/sample, if the district attorney opposes the application, if the hearing will occur fewer than 20 days after service, if the clerk rejects this composed application, or if an immigration consequence is involved.

Exact route: obligation:track-branch:NC:nc_146_dismissal_petition:dna-expunction-application-15a-146-b1

CONDITIONAL COMPANION - AOC-CV-226 CIVIL AFFIDAVIT OF INDIGENCY

Applicant: Maria-Alejandra O'Shaughnessy-Whitfield

Use the following official form only if the clerk confirms that a fee applies to this separate G.S. 15A-146(b1) application, that a waiver may be requested, and that AOC-CV-226 is accepted for that request.

The route record does not state a filing fee or fee-waiver treatment. Presence in this review packet is not a statement that the form must be filed.

Complete every applicable financial answer truthfully. The platform filled only identity, contact, county, and case-number fields it holds. It did not fill any financial answer, election, signature, signature date, or jurat field.

(TYPE OR PRINT IN BLACK INK)
STATE OF NORTH CAROLINA

New Hanover

County

File No.

2004CR000000118844-A

In The General Court Of Justice

☐ District

☐ Superior Court Division

CIVIL AFFIDAVIT OF INDIGENCY

G.S. 7A-450 et seq.

Name Of Applicant

Maria-Alejandra O'Shaughnessy-Whitfield

Street Number And Street Name, Including Apartment Or Unit Number If Applicable

1188 Upper Yadkin River Crossing Road, Apartment 14B

City, State And Zip Code

Winston-Salem

NC

27101-2214

Full Permanent Mailing Address Of Applicant (if different than above)

Telephone Number Of Applicant

(336) 555-0199 ext. 4417

Date Of Birth

1968-12-31

☐ Plaintiff

☐ Defendant

Applicant: (answering this question is optional) Have you ever served in the United States Armed Forces? ☐ Yes ☐ No

MONTHLY INCOME (money you make)

MONTHLY EXPENSES (money you pay out)

Employment - Applicant

\$

Number Of Dependents

Name And Address Of Applicant's Employer
(If not employed, state reason; if self-employed, state trade)

Shelter ☐ Buying ☐ Renting

\$

Food (including Food Stamps)

\$

Utilities (power, water, heating,
phone, cable, etc.)

\$

Other Income (Welfare, Food Stamps,
S/S, Pensions, etc.)

\$

Health Care

\$

Installment Payments

☐ Vehicle ☐ Other

\$

Employment - Spouse

\$

Name And Address Of Spouse's Employer

Car Expenses (gas, insurance, etc.)

\$

Support Payments

\$

Other: (specify)

\$

Total Monthly Income

\$

Total Monthly Expenses

\$

DESCRIPTION OF ASSETS AND LIABILITIES

ASSETS
(things you own)

LIABILITIES
(amounts you owe)

Cash On Hand And In Bank Accounts (list name of bank and account type,
do not list account no.)

\$

Money Owed To Or Held For Applicant

\$

Motor Vehicles (list make, model, year)

\$

(Fair Market Value)

\$

(Balance Due)

Real Estate

\$

(Fair Market Value)

\$

(Balance Due)

Personal Property

\$

(Fair Market Value)

\$

(Balance Due)

Other Debts

\$

Last Income Tax Filed 20 _____

☐ Refund

☐ Owe

\$

\$

Other

\$

\$

Total Assets And Liabilities

\$

\$

Bond Type

Amount

\$

By Whom Posted

NOTE: Read the notice on the reverse side before completing this form.

(Over)

NOTICE TO PERSONS REQUESTING INDIGENCY OR PARTIAL INDIGENCY DESIGNATION

1. When answering the questions on the Affidavit Of Indigency (*reverse side of this form*), please do not discuss your case with the interviewer. The interviewer can be called as a witness to testify about any statements made in his/her presence. Please wait and speak with your lawyer. Do not ask the interviewer for any advice or opinion concerning your case.
2. **A designation of indigency relieves your obligation to pay all of the arbitration fee. A designation of partial indigency requires you to pay your appropriate percentage of your pro rata share of the arbitration fee prior to arbitration. Failure to pay the arbitration fee will result in the entry of a civil judgment against you, which will accrue interest at the legal rate set out in G.S. 24-1 from the date of the entry of judgment. Your North Carolina Tax Refund and/or North Carolina Lottery winnings may be taken.**
3. The information you provide may be verified, and your signature below will serve as a release permitting the interviewer to contact your creditors, employers, family members, and others concerning your eligibility for an indigency designation. A false or dishonest answer concerning your financial status could lead to prosecution for perjury. See G.S. 7A-456(a) ("A false material statement made by a person under oath or affirmation in regard to the question of his indigency constitutes a Class I felony.").

Under penalty of perjury, I declare that the information provided on this form is true and correct to the best of my knowledge, and that I am financially unable to pay all or part of the arbitration fees prior to the arbitration. I now request that I be designated indigent or partially indigent. I authorize the Court to contact my creditors, employers, or family members, any government agencies or any other entities listed below concerning my eligibility for such designation.

I further authorize my creditors, employers, or family members, any governmental agencies or any other entities listed below to release financial information concerning my eligibility for such designation upon request of the Court.

Governmental Agencies Or Other Entities Authorized To Be Contacted And/Or To Release Information

SWORN/AFFIRMED AND SUBSCRIBED TO BEFORE ME		<i>Date</i>
<i>Date</i>	<i>Signature</i>	<i>Signature Of Applicant</i>
☐ <i>Deputy CSC</i> ☐ <i>Assistant CSC</i> ☐ <i>Clerk Of Superior Court</i> ☐ <i>Magistrate</i>		<i>Name Of Applicant (type or print)</i>
☐ <i>Notary</i>	<i>Date My Commission Expires</i>	☐ <i>Plaintiff</i> ☐ <i>Defendant</i>
SEAL	<i>County Where Notarized</i>	